

25STCV29020 25STCV29020

County: los-angeles

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Case Number: 25STCV29020 Hearing Date: September 15, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

MICHAEL RICE, et al.,

Plaintiffs,

vs.

FORD MOTOR COMPANY, et al.,

Defendants.

Case No.:

25STCV29020

Hearing Date:

September 15, 2026

Hearing

Time: 2:00 p.m.

[TENTATIVE]

ORDER RE:

DEFENDANT FORD

MOTOR COMPANY'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY
ADJUDICATION

Background

On October 3, 2025, Plaintiffs Michael Rice and Bonnie Rice (jointly, "Plaintiffs") filed this lemon law action against Defendants Ford Motor Company ("Ford") and Magic Acquisition Corp., alleging four causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, and (4) breach of implied warranty of merchantability.

Ford now moves for summary judgment or, in the alternative, summary adjudication. Plaintiffs oppose. Ford replied.

Requests for Judicial
Notice

The Court grants Ford's
request for judicial notice of RJN No. 1.

Request for Judicial
Notice

The Court grants Ford's request for judicial
notice.

Evidentiary Objections

The Court rules on Ford's evidentiary
objections as follows:

A. Declaration of Christopher Derhartounian

Objection No. 1: sustained as to "that Ford
already had through its own warranty and sales records;" otherwise, overruled

B. Declaration of Karyn L. Ihara

Objection Nos. 1, 2, 3: overruled

Legal Standard

“[T]he

party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Ibid.)

“When

deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; Code Civ. Proc., § 437c, subd. (c).)

A

motion for summary judgment or adjudication’s function is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 843.) In analyzing such motions, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Summary judgment or adjudication is proper when “all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., §

437c, subd. (c); (see also *Villa v. McFerren* (1995)
35 Cal.App.4th 733, 741.)

The
moving party bears the initial burden of production to make a prima facie
showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.*, supra, 25
Cal.4th at p. 850.) As to each cause of action as framed by the complaint,
the defendant moving for summary judgment or adjudication must satisfy the
initial burden of proof by presenting affirmative evidence to disprove at least
one essential element of the plaintiff's cause of action, show that an element
cannot be established, or establish an affirmative defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Sanchez v. Swinerton &
Walberg Co.* (1996) 47
Cal.App.4th 1461, 1465.)

Once
the moving defendant meets its burden for a particular cause of action, the
burden shifts to the nonmoving plaintiff. (Code Civ.
Proc., § 437c, subd. (p)(2).) The plaintiff may defeat the motion by
producing evidence showing that a triable issue of one or more material facts
exists as to that cause of action. (*Ibid.*)

On
a motion for summary judgment or adjudication, the moving party's supporting
documents are strictly construed, while the nonmoving party's documents are
liberally construed. (*D'Amico v. Board of Medical
Examiners* (1974) 11 Cal.3d 1, 24.) Any "doubts as to the propriety of
granting the motion should be resolved in favor of the party opposing the
motion." (*Ibid.*)

Discussion

A. Relevant Allegations of the Complaint

Plaintiffs
allege that "[o]n or around January 17, 2020, Plaintiffs purchased
Subject Vehicle. Subject Vehicle was manufactured and/or distributed by
Defendant." (Compl., ¶ 10.) Plaintiffs
allege that they "purchased and used Subject Vehicle primarily for personal,
family, or household purposes" and "[w]hen the Subject Vehicle was
purchased, Plaintiffs received express written warranties in which Defendant

undertook to preserve or maintain the utility or performance of Subject Vehicle or to provide compensation if there is a failure in utility or performance for a specified period of time. The warranty provided, in relevant part, that in the event a nonconformity developed within Subject Vehicle during the applicable warranty period, Plaintiffs could deliver Subject Vehicle for repair to Defendant's authorized service and repair facilities and Subject Vehicle would be repaired." (Compl., ¶¶ 12-13.)

Plaintiffs further allege that "[d]uring Plaintiffs' ownership of Subject Vehicle, the Subject Vehicle manifested defects covered by Defendant's express written warranties. These defects include but are not limited to: electrical system, transmission system, interior defects (Subject Vehicle's 'defects')." (Compl., ¶ 14.) "Plaintiffs delivered Subject Vehicle to Defendant and/or its authorized service and repair facilities for diagnosis and repair of the defects" (Compl., ¶ 15); however, "Defendant and/or its authorized service and repair facilities failed to service or repair Subject Vehicle to conform to the applicable express warranties after a reasonable number of opportunities to do so," and, "[d]espite this fact, Defendant failed to promptly replace Subject Vehicle or make restitution to Plaintiffs as required by Civil Code section 1793.2(d). (Compl., ¶¶ 16-17.)

B.

Evidence Relevant to All Causes of Action

On

January 17, 2020, Plaintiffs bought a 2019 Ford Expedition, VIN 1FMJU2AT9KEA77299, for a total contract price of \$66,466.65. (Ihara Decl., ¶ 2, Ex. A.) On October 6, 2025, Plaintiffs served Ford with their Complaint. (Ihara Decl., ¶ 3, Ex. B.) Prior to serving and filing their Complaint, Plaintiffs never contacted Ford to request that Ford repurchase their vehicle. (Ihara Decl., ¶ 4, Ex. C.) On October 24, 2025, Ford offered a statutory repurchase of Plaintiffs' vehicle, which Plaintiffs did not accept. (Ihara Decl., ¶¶ 5-6, Ex. D.) On January 12, 2026, Ford made a 998 Offer of repurchase of Plaintiffs' vehicle for the sum of \$71,467.00. (Ihara Decl., ¶ 7, Ex. E.)

Plaintiffs

delivered the vehicle for repairs on August 21, 2020, August 6, 2021, January 29, 2024, and November 18, 2024. (Michael Rice Decl., ¶¶ 6-9.) The repair from January 29, 2024 resulted in a complete overhaul. (Michael Rice

Decl., ¶ 8.) “The technician removed the transmission, bench-mounted it, disassembled it, and found that the one-way C.D.F. drum bushing sleeve had pushed out of position, causing shift concerns,” as well as “replaced the CDF drum and D clutch, overhauled the main valve body, flushed the torque converter and cooler lines, updated the PCM and TCM software, cleared diagnostic trouble codes, cleared the transmission adaptive shift tables, and performed transmission drive cycles after the repairs.” (Ibid.)

The next repair on November 18, 2024, which was only about 5,000 miles after the transmission overhaul, occurred because the transmission problem returned. “The dealer’s technician concluded that ‘corrupt software’ was responsible, updated the PCM and TCM software, reprogrammed the system, and again cleared the transmission shift adaptive tables.” (Michael Rice Decl., ¶ 9.) Plaintiff Michael Rice explains that when the “clunking into gear” problem returned in November 2024, he “understood that the transmission had not been satisfactorily repaired despite Ford’s overhaul.” (Michael Rice Decl., ¶ 13.)

C. First, Second, and Third Causes of Action Based on Express Warranty

Ford

contends that it “fulfilled its express-warranty obligations by making a prompt repurchase offer.” (Mot., 4:9-10, emphasis omitted.)

“To

succeed on a claim for breach of an express warranty for a vehicle, the buyer plaintiff must prove that (1) the vehicle had a defect or nonconformity covered by a written warranty that substantially impaired the vehicle’s use, value, or safety to a reasonable person in plaintiff’s shoes (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer for repair (the presentation element); (3) the manufacturer or its authorized repair facility did not repair the defect after a reasonable number of repair attempts (the failure to repair element); and (4) the manufacturer did not promptly replace or repurchase the vehicle from the plaintiff (the failure to replace or repurchase element).” (Carver

v. Volkswagen Group of America, Inc. (2024) 107 Cal.App.5th 864, 879 (Carver).) Regarding promptness, “Section 1793.2, subdivision (d)(2) sets forth the

manufacturer’s affirmative obligation to ‘promptly’ repurchase or replace a defective vehicle it is unable to repair.’ [Citation.] ... There is no set timeframe for an offer to be ‘prompt.’ However, courts have found offers to be prompt where 40 to 50 days elapsed between the consumers’ initial requests for repurchase/replacement and the manufacturers’ offers.” (Id. at pp. 879-880.)

In Carver, “only 23 days elapsed between plaintiff’s first request for repurchase and VWGA’s written offer,” thus, the court found that “[a]s a matter of law, this offer was prompt.” (Carver, *supra*, 107 Cal.App.5th at p. 880.) Ford asserts that “[h]ere, like in Carver, Plaintiffs’ express warranty claim fails because Ford made a prompt repurchase offer. Ford’s offer was 18 days after Plaintiffs first notified Ford of their dissatisfaction with the vehicle (via service of the Complaint), and thus well within the reasonable 40 to 50 day time period. Moreover, Ford made this first repurchase offer without delay or repeated attempts to compel compliance. For these reasons, Ford’s offer was a prompt offer as a matter of law.” (Mot., 4:27-5:3.)

Ford asserts that “[n]otably, Ford’s response time was particularly prompt because Plaintiffs’ Complaint omitted any specifics about the alleged defects or repair history for their vehicle, and failed to include the purchase agreement. (See Compl.) Thus, Plaintiffs cannot argue that Ford’s first repurchase offer was ineffective for failure to include a specific dollar amount. And they cannot maintain a lawsuit based on a delay that is their own fault. (Mot., 5:8-12; see, e.g., Code Civ. Proc., § 871.24, subd. (e)(2) [“The consumer shall comply in good faith with reasonable requests from the manufacturer for documentation required to complete the requested restitution or replacement of the motor vehicle.”].)

Additionally, Ford contends, “[n]or can Plaintiffs argue Ford should have offered to repurchase their vehicle before they requested a repurchase. Ford anticipates Plaintiffs may argue the Song-Beverly Act imposes a duty on manufacturers to repurchase a vehicle as soon as a consumer has permitted a reasonable number of repair attempts, regardless of whether the consumer actually requests a repurchase, and that they may cite *Krotin v. Porsche Cars N. Am., Inc.* (1995) 38 Cal.App.4th 294 and *Lukather v. Gen. Motors* (2010) 181 Cal.App.4th 1041 for this proposition. Under this theory, they may argue Ford was affirmatively required to repurchase their vehicle based solely on its repair history, and Ford’s repurchase offer was too late. But such argument would impose obligations on Ford that exceed what the law requires, and for good policy reasons... It is only in rare instances—characterized by the court as ‘stonewalling of fundamental warranty problems’—where a manufacturer might be put on notice of a failure to conform to warranty and a desire for replacement without a request

in which an affirmative duty to repurchase might arise. (Id. at 881.) Here, no such 'stonewalling' occurred; Plaintiffs never even contacted Ford regarding their vehicle prior to filing suit, much less gave any indication they desired a repurchase." (Mot., 5:15-6:5.)

Additionally,

the Carver court expressed that "prior to litigation, VWGA offered plaintiff all the restitution he could recover under section 1793.2, subdivision (d). It was plaintiff's choice, not VWGA's, to refuse that offer in order to allege damages to support this lawsuit and seek civil penalties and attorney fees. Thus, defendants have not damaged plaintiff." (Carver, *supra*, 107 Cal.App.5th at p. 890.) Ford contends that it "made a good faith written offer to repurchase Plaintiffs' vehicle 18 days after they served Ford with the Complaint, which was the first time they expressed dissatisfaction with the vehicle... Moreover, because Plaintiffs continue to refuse Ford's offers to repurchase their vehicle, any argument that they were damaged by Ford's failure to volunteer a repurchase offer at an earlier point—and before they ever requested one—is disingenuous and not credible. In sum, Plaintiffs have not, and cannot, establish that Ford 'failed to satisfy its duty to replace/repurchase the Vehicle'— a necessary element of his express warranty claim. ([Carver, *supra*,] at 876.) Ford honored its express warranty. Accordingly, summary judgment should be granted on the express warranty claims." (Mot., 7:19-28.)

In

opposition, Plaintiffs contend that "Carver emphasized that VWGA was 'regularly communicat[ing] with [the consumer]' for weeks before the buy-back demand and 'made efforts to repair the vehicle', expressly contrasting that engagement with Krotn 'stonewalling.' (107 Cal.App.5th at pp. 880–881.)

Ford did nothing comparable here during the years between Plaintiffs' first warranty visit (August 2020) and the filing of this suit (October 2025), despite issuing Recall 21B10 on this Vehicle, performing a complete transmission overhaul in January– February 2024, and seeing the same complaint recur ten months later." (Opp., 6:21-27.) Moreover, Plaintiffs assert that "Carver found promptness satisfied under either of two measurement points, 23 days from the consumer's first request, or 50 days from the date the manufacturer was on notice of its duty. (Id. at pp. 879.) Under either framework, Ford fails. Ford's duty arose no later than November 2024 (transmission recurrence after overhaul), and Ford did not offer anything until October 24, 2025, roughly 11 months later, and only after suit was filed." (Opp., 7:1-6.)

Further,

Plaintiffs assert that “[c]ritically, Carver applied Krotin’s stonewalling framework on the merits... Krotin’s stonewalling principle thus remains good law, and its application turns on whether the manufacturer was diligent, a fact-bound inquiry not suited to summary judgment. Whether Ford’s years of pre-suit inaction here constitute Krotin stonewalling, and whether Ford’s post-suit offers were ‘prompt’ measured from the date Ford’s duty actually arose, are triable issues of material fact.” (Opp., 7:24-8:4.) In *Krotin v. Porsche Cars North America, Inc.* (1995) 38 Cal.App.4th 294, 302-303, the court expressed that “the [Song-Beverly] Act does not require consumers to take any affirmative steps to secure relief for the failure of a manufacturer to service or repair a vehicle to conform to applicable warranties—other than, of course, permitting the manufacturer a reasonable opportunity to repair the vehicle. The so called ‘commonsense’ argument arises only because of the disparity between the law as written and reality as it appears in the typical service department of a dealership. In reality, as indicated by the facts alleged at trial by the Krotins, the manufacturer seldom on its own initiative offers the consumer the options available under the Act: a replacement vehicle or restitution. Therefore, as a practical matter, the consumer will likely request replacement or restitution. But the consumer’s request is not mandated by any provision in the Act. Rather, the consumer’s request for replacement or restitution is often prompted by the manufacturer’s unforthright approach and stonewalling of fundamental warranty problems. An automobile manufacturer need not read minds to determine which vehicles are defective; it need only read its dealers’ service records.”

Although

Ford contends that *Krotin*, supra, does not support Plaintiffs’ argument because no stonewalling occurred, the quote from *Krotin* above demonstrates that a manufacturer may be on notice to offer to repurchase a vehicle after looking at the repair history. Here, Plaintiffs provide evidence of repair history where they had the vehicle’s transmission overhauled, but just nine months and roughly 5,000 miles after the repair, the vehicle’s transmission problem returned. Accordingly, this serves as evidence that Ford was on notice of the need to offer to replace the vehicle, and Plaintiffs raise a triable issue of material fact as to whether Ford should have, but failed to, offer to repurchase the vehicle.

D. Civil Penalties

Under Code of Civil Procedure Section 871.24

Ford

also asserts that Plaintiffs' claim for civil penalties is barred by Code of Civil Procedure section 871.24, and they lack evidence supporting their request for a civil penalty.

Under

Code of Civil Procedure section 871.24, subdivision (a),

"[a]t least 30 days prior to the commencement of an action seeking civil

penalties under subdivision (c) of Section 1794 of the

Civil Code, the consumer shall do all of the following: (1) Notify the

manufacturer of the consumer's name, the accurate Vehicle Identification Number

('VIN') of the motor vehicle, and a brief summary of the repair history and

problems with the motor vehicle. (2) Demand that the manufacturer repurchase or replace the motor vehicle."

Ford

contends that "Plaintiffs failed to meet any of these requirements. As

discussed, they failed to demand repurchase or replacement prior to filing

suit. (UMF 3.) Under the plain language of Section

871.24, they cannot seek civil penalties." (Mot., 8:9-11.)

Plaintiffs

contend that applying Code of Civil Procedure section

871.24 is improper because the statute cannot be applied retroactively and

"[s]ection 871.24 became operative on April 1, 2025." (Opp., 10:9.) However,

the application of Code of Civil Procedure section

871.24 is not improper because Plaintiffs filed their lawsuit after the

statute went into effect. Thus, Plaintiffs were on notice of the requirements that

Code of Civil Procedure section 871.24 imposes but

chose not to comply with the statute's provisions. The undisputed facts are

that Plaintiffs did not request that Ford repurchase the vehicle before filing

suit. Thus, the motion for summary adjudication is granted as to Plaintiffs

request for civil penalties under Code of Civil Procedure

section 871.24.

E. Fourth Cause of

Action for Implied Warranty Damages.

Ford

contends that summary judgment is warranted for Plaintiffs' fourth cause of

action.

“Under the Song–Beverly Act, every retail sale of ‘consumer goods’ in California includes an implied warranty by the manufacturer and the retail seller that the goods are ‘merchantable’ unless the goods are expressly sold ‘as is’ or ‘with all faults.’” ((*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1303 (*Mexia*).) Under the Song-Beverly Act, the implied warranty of merchantability necessitates that consumer goods meet each of the following: “(1) Pass without objection in the trade under the contract description. [¶] (2) Are fit for the ordinary purposes for which such goods are used. [¶] (3) Are adequately contained, packaged, and labeled. [And ¶] (4) Conform to the promises or affirmations of fact made on the container or label.” (Civ. Code, § 1791.1, subds. (a)(1)-(4).) “The core test of merchantability is fitness for the ordinary purpose for which such goods are used... Such fitness is shown if the product is in safe condition and substantially free of defects....” (*Mexia*, *supra*, 174 Cal.App.4th at p. 1303, internal quotations omitted.)

Ford contends that “[i]n *Carver*, the Court held that a prompt restitution offer under the Song Beverly Act provided all the restitution to which the plaintiff was entitled for any breach of an implied warranty of merchantability. (107 Cal.App.5th at 890.) It further held that if the plaintiff refused that offer, then ‘defendants have not damaged plaintiff’ and that summary judgment is proper. (*Id.*) Here, as in *Carver*, Plaintiffs cannot prove damages. As discussed above, Ford offered Plaintiffs a full statutory repurchase shortly after they served the Complaint. (UMF 4.) In its second offer, Ford offered to repurchase the vehicle for \$71,467.00—covering the total sales price that Plaintiffs paid for the vehicle plus additional money covering incidentals—in addition to attorney fees and costs by motion. As discussed, Plaintiffs rejected both of these offers. (UMF 5, UMF 7.) Thus, summary judgment is warranted as to the implied warranty claim for failure to prove damages.” (Mot., 9:27-10:8.)

Plaintiffs assert that “Ford’s only argument against Count Four is that its post-suit offer would have extinguished damages. That fails for two reasons. First, the argument depends on the premise that Ford’s offer was Act-compliant; that premise is contested for the reasons stated in Section II.C and Plaintiffs’ Response to UMF No. 6. *Carver* itself recognized that summary adjudication of the implied-warranty claim turns on whether the offer was Act-compliant. (107 Cal.App.5th at p. 890.) Second, Plaintiffs continued to incur recoverable damages between the

date Ford's duty arose (no later than November 2024) and the date of Ford's belated offer (January 2026). Monthly payments made during that interval increase the statutory restitution amount under § 1793.2(d)(2)(B) as part of 'the actual price paid or payable.'" (Opp., 9:10-18.)

Similarly to Plaintiffs' express warranty causes of action, Plaintiffs present a triable issue of material fact as to whether Ford's repurchase offer was prompt, as Plaintiffs present evidence that Ford should have been on notice of the need to repurchase the vehicle no later than November 2024. Accordingly, the motion for summary adjudication as to the fourth cause of action similarly fails.

F. Unclean Hands

Ford contends that summary adjudication "is also warranted under Ford's affirmative defense based on Plaintiffs' failure to engage in pre-suit informal dispute resolution of his warranty claims. Specifically, Plaintiffs filed suit in bad faith—ignoring Ford, while claiming Ford was ignoring them. Plaintiffs did not engage in informal dispute resolution with clean[] hands, and summary judgment should be granted for this additional reason." (Mot., 10:11-15.)

The unclean hands "doctrine demands that a plaintiff act fairly in the matter for which he seeks a remedy. He must come into court with clean hands, and keep them clean, or he will be denied relief, regardless of the merits of his claim." (Kendall-Jackson Winery, Ltd. v. Superior Court (1999) 76 Cal.App.4th 970, 978 (Kendall-Jackson).) "Not every wrongful act constitutes unclean hands. But, the misconduct need not be a crime or an actionable tort. Any conduct that violates conscience, or good faith, or other equitable standards of conduct is sufficient cause to invoke the doctrine. [Citations.] The misconduct that brings the unclean hands doctrine into play must relate directly to the cause at issue." (Id. at p. 979.) "[T]he application of the doctrine raises primarily a question of fact." (Fibreboard Paper Products Corp. v. East Bay Union of Machinists, Local 1304, United Steelworkers of America, AFL-CIO (1964) 227 Cal.App.2d 675, 727.)

Ford asserts that "Plaintiffs allege that Ford breached its warranty by failing to conform their vehicle to warranty and then failed to repurchase in violation of the Song Beverly Act.

Plaintiff's claims are disingenuous at best. As discussed, Plaintiff intentionally frustrated Ford's attempts to effectuate a repurchase... Plaintiffs' intentional frustration of the repurchase process followed by a Complaint seeking to penalize Ford for failing to repurchase is bad faith directly relative to the matter. Indeed, by refusing Ford's offer to repurchase, Plaintiff's actions gave rise to this entire dispute. And turning to the balance of wrongs: even assuming that Ford manufactured a vehicle that was defective, it diligently sought to remedy that wrong by repurchasing the vehicle. On the other hand, Plaintiffs deceitfully asked for Ford to honor its warranty in the hopes that it would not, so that they could file a lawsuit. When Ford did honor its warranty, Plaintiffs simply ignored it and filed suit. These attempts to manufacture a dispute where there is none cannot be rewarded. For this additional reason, the Court should grant summary judgment in Ford's favor." (Mot., 11:14-27.)

In opposition, Plaintiffs contend that "[a]n equitable defense that would permit a manufacturer to escape Song-Beverly liability by labeling the consumer's refusal of a noncompliant offer 'inequitable' would do precisely that: it would let manufacturers achieve through equity what section 1790.1 forbids by contract. Even if available, the defense requires inequitable conduct "directly related" to the claim. [Citation.] Plaintiffs' alleged 'wrong', declining contested post-suit offers, is precisely what the Act protects. If anyone has unclean hands on this record, it is Ford, whose years of pre-suit silence gave rise to this dispute." (Opp., 11:25-12:5.)

The Court finds that the unclean hands doctrine does not warrant granting Ford's motion for summary judgment. Although Ford contends that Plaintiffs' failure to accept the repurchase offer intentionally frustrated the repurchase process, this does not affirmatively demonstrate that Plaintiffs have unclean hands. Ford does not provide the Court with a case that demonstrates a plaintiff's denial of a repurchase or settlement offer makes a plaintiff's hands unclean.

Conclusion

Based on the foregoing, Ford's motion for summary judgment is GRANTED IN PART. Ford's motion for summary judgment is DENIED as to the first, second, third, and fourth causes of action. Ford's motion for summary

judgment is GRANTED as to the request for civil penalties under Code of Civil Procedure section 871.24.

Ford is ordered to give
notice of this Order.

DATED: September 15, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court